

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
GUY GOODMAN,

Plaintiff,

- against -

Plaintiff designates
Bronx County
the place of trial

The basis of venue is
Location of occurrence

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER ELIJAH RODRIGO (SHIELD
#11451), NEW YORK CITY POLICE OFFICER
SERGIO, NEW YORK CITY POLICE OFFICER
WILLIAM MUNOZ and NEW YORK CITY POLICE
OFFICER ANDERSON ROSA (Shield #25897),

Defendants.

SUMMONS

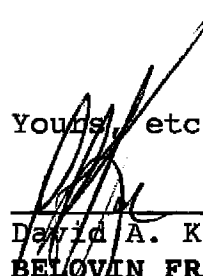
Plaintiff resides at:
1641 Metropolitan Ave.,
Apt. 6E
Bronx, NY 10462

-----X
To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
November 14, 2023

Yours, etc.,



David A. Karlin, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
Office & P. O. Address
1937 Williamsbridge Road
2nd Floor, Suite B
Bronx, New York 10461
(718) 655-2900

Defendant(s) Address(es):**THE CITY OF NEW YORK**

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE OFFICER**ELIJAH RODRIGO (SHIELD #11451)**43rd Precinct

900 Fteley Ave.

Bronx, NY 10473

NEW YORK CITY POLICE OFFICER SERGIO43rd Precinct

900 Fteley Ave.

Bronx, NY 10473

NEW YORK CITY POLICE OFFICER**WILLIAM MUNOZ**43rd Precinct

900 Fteley Ave.

Bronx, NY 10473

NEW YORK CITY POLICE OFFICER**ANDERSON ROSA (Shield #25897)**43rd Precinct

900 Fteley Ave.

Bronx, NY 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
GUY GOODMAN,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, NEW YORK
CITY POLICE OFFICER ELIJAH RODRIGO
(Shield #11451), NEW YORK CITY POLICE
OFFICER SERGIO, NEW YORK CITY POLICE
OFFICER WILLIAM MUNOZ and NEW YORK CITY
POLICE OFFICER ANDERSON ROSA (Shield
#25897),

Defendants.
-----X

Plaintiff, by and through his attorneys, **BELOVIN FRANZBLAU & ASSOCIATES, PC**, as and for a Verified Complaint, respectfully alleges as follows:

1. At all the times hereinafter mentioned, plaintiff was, and still is, a resident of the City and State of New York, County of Bronx.

2. At all the times herein, the defendant, THE CITY OF NEW YORK, was, and still is a duly licensed Municipal Corporation authorized to transact business in City of New York, County of Bronx, State of New York.

3. At all the times herein, the defendant, THE CITY OF NEW YORK, was, and still is a duly licensed Municipal Corporation

authorized to transact business in City of New York, County of Bronx, State of New York.

4. At all the times herein, the defendant, THE CITY OF NEW YORK, was, and still is a duly licensed entity authorized to transact business in City of New York, County of Bronx, State of New York.

5. Upon information and belief, the defendant, THE CITY OF NEW YORK, employed NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897).

6. Upon information and belief, as of December 3, 2022, the defendant, THE CITY OF NEW YORK, employed, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897) who were herein duly employed and acting as a Police Officers (or other ranking officer) with the police department of THE CITY OF NEW YORK.

7. Upon information and belief, all times herein, the defendants, NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ and NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), were and still are employees of THE CITY OF NEW YORK as Police Officers (or other ranking officers)

and were at all times herein, acting within the furtherance and scope of their employment with THE CITY OF NEW YORK.

8. Upon information and belief, all times herein, the defendants, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897) who were and still are employees of THE CITY OF NEW YORK as Police Officers (or other ranking officers) and were at all times herein acting within the furtherance and scope of their employment with THE NEW YORK CITY POLICE DEPARTMENT.

9. THE CITY OF NEW YORK condoned all of the actions of NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897) as set forth herein and hereinafter.

10. THE CITY OF NEW YORK POLICE DEPARTMENT condoned all of the actions of NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897) as set forth herein and hereinafter.

11. The defendant, THE CITY OF NEW YORK, is liable and responsible for all of those acts committed by the defendants, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM

MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897) pursuant to the doctrine of respondeat superior.

12. The defendant, THE CITY OF NEW YORK, is liable and responsible for all of those acts committed by the defendants, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897) and THE NEW YORK CITY POLICE DEPARTMENT, pursuant to the doctrine of respondeat superior.

13. Upon information and belief, THE CITY OF NEW YORK, at all times herein, expressly and/or implicitly condoned all of the acts of the defendants, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897) as herein and hereinafter set forth.

14. Upon information and belief, THE CITY OF NEW YORK, at all times herein, expressly and/or implicitly condoned all of the acts of the defendants, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897), and THE NEW YORK CITY POLICE DEPARTMENT, as herein and hereinafter set forth.

15. Upon information and belief, each and all of the acts of the defendants, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield

#11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897), alleged herein were done by defendants, both as individuals, and collectively, and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York, and under the authority of their position as Police Officers (or other ranking officers) for the defendant, THE CITY OF NEW YORK.

16. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location.

17. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location and all responding officers were leaving Apt. 6E without making an arrest.

18. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location and all responding officers left Apt. 6E without making an arrest.

19. Upon information and belief, beginning on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan

Avenue, Apt. 6E, City and State of New York, County of Bronx, the plaintiff was lawfully and properly at said location, when the defendants improperly, without proper cause, without consent, and without legal justification, re-entered his locked apartment by physically breaking the lock and/or door of said apartment without a valid search or arrest warrant and without any exigent circumstances or even arguable exigent circumstances and in violation of law, in violation of claimant's rights pursuant to the laws and Constitution of the State of New York and in violation of claimant's rights pursuant to the laws and Constitution of the United States including but not limited to claimant's 4th Amendment rights.

20. Upon information and belief, upon improperly, unlawfully and illegally re-entering plaintiff's residence, the defendants tackled, assaulted, battered, punched, punched in the face, knocked, struck, abused, threatened, placed in fear of imminent physical injury, violated plaintiff's constitutional rights, handcuffed, injured, beat, struck, punched, pushed, arrested, imprisoned, transported, searched, charged and participated in the prosecution of the plaintiff, all against plaintiff's will, all with plaintiff's knowledge and all without plaintiff's consent.

21. Upon information and belief, the defendants, in addition to assault, battery and other crimes as set forth herein, committed

Upon information and belief, the defendants, in addition to

Upon information and belief, the defendants, in addition to

BELOVIN FRANZBLAU & ASSOCIATES, PC

the crimes of trespass and burglary at/inside plaintiff's residence.

22. Upon information and belief, each and every action committed by the defendants, from improperly and unlawfully re-entering plaintiff's premises by force and without consent, authorization or legal justification, up through actively participating in the prosecution of the plaintiff, was negligent, intentional, illegal, unlawful, improper and/or done with malice, and was actionable and violated plaintiff's civil and constitutional rights.

23. Upon information and belief, the defendants improperly broke into plaintiff's apartment, burglarized, assaulted and battered plaintiff, threatened the use of imminent force, utilized force, utilized undue, unnecessary and improper force, struck the plaintiff, struck the plaintiff in the face, improperly searched, assaulted, battered, falsely arrested, falsely imprisoned, falsely and maliciously prosecuted the plaintiff and caused the plaintiff to be deprived of his civil and constitutional rights.

24. Upon information and belief, as a result of the actions of the defendants as more fully set forth herein, the defendants caused the plaintiff to undergo great emotional and mental anguish and emotional and physical harm, and caused the plaintiff to suffer loss of liberty and freedom, and plaintiff was kept and imprisoned

against his will, and plaintiff was also forced to undergo great emotional and mental anguish thereafter.

25. Upon information and belief, prior to the commencement of this action, a timely and proper Notice of Claim was duly served herein on the defendant. Thereafter, on or about the 13th day of June, 2023, the City of New York conducted a 50-H hearing pursuant to the General Municipal Law. More than thirty days have expired since the filing of the Notice of Claim and the 50-H hearing and the defendant has failed and neglected to adjust the claim. This action is timely brought.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897)

26. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "25", above as if fully set forth herein.

27. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location.

28. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was

lawfully and properly at said location and all responding officers were leaving Apt. 6E without making an arrest.

29. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location and all responding officers left Apt. 6E without making an arrest.

30. Upon information and belief, beginning on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, the plaintiff was lawfully and properly at said location, when the defendants improperly, without proper cause, without consent, and without legal justification, re-entered his locked apartment by physically breaking the lock and/or door of said apartment without a valid search or arrest warrant and without any exigent circumstances or even arguable exigent circumstances and in violation of law, in violation of claimant's rights pursuant to the laws and Constitution of the State of New York and in violation of claimant's rights pursuant to the laws and Constitution of the United States including but not limited to claimant's 4th Amendment rights.

31. Upon information and belief, after improperly, unlawfully and illegally entering plaintiff's residence, the defendants falsely and improperly re-entered the plaintiff's

apartment and falsely arrested the plaintiff, all against plaintiff's will, all with plaintiff's knowledge and all without plaintiff's consent.

32. Upon information and belief, all charges in connection with this arrest were dismissed on or about March 7, 2023.

33. Upon information and belief, as a result of the actions of the defendants as more fully set forth herein, the defendants caused the plaintiff to undergo great emotional and mental anguish and emotional and physical harm and caused the plaintiff to suffer loss of liberty and freedom, and plaintiff was arrested, kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish and loss of enjoyment of life.

34. Upon information and belief, as a result of the actions of the defendants as more fully set forth herein, the defendants caused the plaintiff to undergo great emotional and mental anguish and emotional and physical harm, and caused the plaintiff to suffer loss of liberty and freedom, and plaintiff was arrested, kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish and loss of enjoyment of life for which plaintiff is entitled to damages from the defendants in an amount exceeding the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT
AGAINST DEFENDANTS, CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE
OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and
NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897)

35. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "34", above as if fully set forth herein.

36. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location.

37. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location and all responding officers were leaving Apt. 6E without making an arrest or imprisoning the plaintiff.

38. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location and all responding officers left Apt. 6E without making an arrest or imprisoning the plaintiff.

39. Upon information and belief, beginning on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan

Avenue, Apt. 6E, City and State of New York, County of Bronx, the plaintiff was lawfully and properly at said location, when the defendants improperly, without proper cause, without consent, and without legal justification, re-entered his locked apartment by physically breaking the lock and/or door of said apartment without a valid search or arrest warrant and without any exigent circumstances or even arguable exigent circumstances and in violation of law, in violation of claimant's rights pursuant to the laws and Constitution of the State of New York and in violation of claimant's rights pursuant to the laws and Constitution of the United States including but not limited to claimant's 4th Amendment rights.

40. Upon improperly, unlawfully and illegally entering plaintiff's residence, the defendants falsely and improperly re-entered the plaintiff's apartment and arrested and falsely imprisoned the plaintiff, all against plaintiff's will, all with plaintiff's knowledge and all without plaintiff's consent.

41. Upon information and belief, as a result of the actions of the defendants as more fully set forth herein, the defendants caused the plaintiff to undergo great emotional and mental anguish and emotional and physical harm, and caused the plaintiff to suffer loss of liberty and freedom, and plaintiff was arrested, kept and falsely imprisoned against his will, and plaintiff was also forced

to undergo great emotional and mental anguish and loss of enjoyment of life.

42. Upon information and belief, as a result of the actions of the defendants as more fully set forth herein, the defendants caused the plaintiff to undergo great emotional and mental anguish and emotional and physical harm, and caused the plaintiff to suffer loss of liberty and freedom, and plaintiff was arrested, kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish and loss of enjoyment of life for which plaintiff is entitled to damages from the defendants in an amount exceeding the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT AGAINST THE DEFENDANTS, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO , NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897) THE CITY OF NEW YORK,

43. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "42", above as if fully set forth herein.

44. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location.

45. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location and all responding officers were leaving Apt. 6E without making an arrest.

46. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location and all responding officers left Apt. 6E without making an arrest.

47. Upon information and belief, beginning on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, the plaintiff was lawfully and properly at said location, when the defendants improperly, without proper cause, without consent, and without legal justification, re-entered his locked apartment by physically breaking the lock and/or door of said apartment without a valid search or arrest warrant and without any exigent circumstances or even arguable exigent circumstances and in violation of law, in violation of claimant's rights pursuant to the laws and Constitution of the State of New York and in violation of claimant's rights pursuant to the laws and Constitution of the United States including but not limited to claimant's 4th Amendment rights.

48. Upon improperly, unlawfully and illegally entering plaintiff's residence, the defendants falsely and improperly re-entered the plaintiff's apartment and falsely arrested and imprisoned the plaintiff, all against plaintiff's will, all with plaintiff's knowledge and all without plaintiff's consent.

49. Upon improperly, unlawfully and illegally entering plaintiff's residence, the defendants tackled, assaulted, battered, punched, punched in the face, knocked, struck, caused physical injury, abused, threatened, placed in fear of imminent physical injury, violated plaintiff's constitutional rights, handcuffed, injured, beat, struck, punched, pushed, arrested, imprisoned, transported, searched, charged and participated in the prosecution of the plaintiff, all against plaintiff's will, all with plaintiff's knowledge and all without plaintiff's consent.

50. Upon information and belief, the defendants improperly broke into plaintiff's apartment, burglarized, assaulted and battered plaintiff, threatened and utilized force, threatened and utilized undue unnecessary and improper force, struck the plaintiff, struck the plaintiff in the face, improperly searched, assaulted, battered, falsely arrested, falsely imprisoned, falsely and maliciously prosecuted the plaintiff and caused the plaintiff to be deprived of his civil and constitutional rights.

51. Upon information and belief, as a result of the actions of the defendants as more fully set forth herein, the defendants

caused the plaintiff to undergo great emotional and mental anguish and emotional and physical harm, and caused the plaintiff to suffer loss of liberty and freedom, and plaintiff was arrested, kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish and loss of enjoyment of life.

52. Upon information and belief, as a result of the actions of the defendants as more fully set forth herein, the defendants caused the plaintiff to undergo great emotional and mental anguish and emotional and physical harm, and caused the plaintiff to suffer imminent fear of injury, imminent fear of being struck and beaten, loss of liberty and freedom, and plaintiff was arrested, kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish and loss of enjoyment of life for which plaintiff is entitled to damages from the defendants in an amount exceeding the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION FOR BATTERY AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897)

53. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "52", above as if fully set forth herein.

54. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location.

55. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location and all responding officers were leaving Apt. 6E without making an arrest.

56. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location and all responding officers left Apt. 6E without making an arrest.

57. Upon information and belief, beginning on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, the plaintiff was lawfully and properly at said location, when the defendants improperly, without proper cause, without consent, and without legal justification, re-entered his locked apartment by physically breaking the lock and/or door of said apartment without a valid search or arrest warrant and without any exigent circumstances or even arguable exigent circumstances and in

violation of law, in violation of claimant's rights pursuant to the laws and Constitution of the State of New York and in violation of claimant's rights pursuant to the laws and Constitution of the United States including but not limited to claimant's 4th Amendment rights.

58. Upon improperly, unlawfully and illegally entering plaintiff's residence, the defendants falsely and improperly re-entered the plaintiff's apartment and falsely arrested and imprisoned the plaintiff, all against plaintiff's will, all with plaintiff's knowledge and all without plaintiff's consent.

59. Upon improperly, unlawfully and illegally entering plaintiff's residence, the defendants tackled, assaulted, battered, punched, punched in the face, knocked, struck, abused, threatened, placed in fear of imminent physical injury, violated plaintiff's constitutional rights, handcuffed, injured, beat, struck, punched, pushed, arrested, imprisoned, transported, searched, charged and participated in the prosecution of the plaintiff, all against plaintiff's will, all with plaintiff's knowledge and all without plaintiff's consent.

60. Upon information and belief, the defendants improperly broke into plaintiff's apartment, burglarized, assaulted and battered plaintiff, utilized force, utilized undue, unnecessary and improper force, struck the plaintiff, struck the plaintiff in the face, improperly searched, assaulted, battered, falsely

arrested, falsely imprisoned, falsely and maliciously prosecuted the plaintiff and caused the plaintiff to be deprived of his civil and constitutional rights.

61. Upon information and belief, as a result of the actions of the defendants as more fully set forth herein, the defendants caused the plaintiff to undergo great emotional and mental anguish and emotional and physical harm, and caused the plaintiff to suffer loss of liberty and freedom, and plaintiff was arrested, kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish and loss of enjoyment of life.

62. Upon information and belief, as a result of the actions of the defendants as more fully set forth herein, the defendants caused the plaintiff to undergo great emotional and mental anguish and emotional and physical harm, and caused the plaintiff to suffer loss of liberty and freedom, and plaintiff was arrested, kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish and loss of enjoyment of life for which plaintiff is entitled to damages from the defendants in an amount exceeding the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY
POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM
MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield
#25897)

63. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "62", above as if fully set forth herein.

64. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location.

65. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location and all responding officers were leaving Apt. 6E without making an arrest.

66. Upon information and belief, on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location and all responding officers left Apt. 6E without making an arrest.

67. Upon information and belief, beginning on or about December 3, 2022 at approximately 10:00 a.m. at 1641 Metropolitan Avenue, Apt. 6E, City and State of New York, County of Bronx, the

plaintiff was lawfully and properly at said location, when the defendants improperly, without proper cause, without consent, and without legal justification, re-entered his locked apartment by physically breaking the lock and/or door of said apartment without a valid search or arrest warrant and without any exigent circumstances or even arguable exigent circumstances and in violation of law, in violation of claimant's rights pursuant to the laws and Constitution of the State of New York and in violation of claimant's rights pursuant to the laws and Constitution of the United States including but not limited to claimant's 4th Amendment rights.

68. Upon improperly, unlawfully and illegally entering plaintiff's residence, the defendants falsely and improperly re-entered the plaintiff's apartment and arrested the plaintiff, all against plaintiff's will, all with plaintiff's knowledge and all without plaintiff's consent.

69. Upon improperly, unlawfully and illegally entering plaintiff's residence, the defendants falsely and improperly re-entered the plaintiff's apartment and assisted in the prosecution of the plaintiff.

70. Upon improperly, unlawfully and illegally entering plaintiff's residence, the defendants falsely and improperly re-entered the plaintiff's apartment and maliciously participated in and assisted in the prosecution of the plaintiff despite the fact

that defendants knew or should have known that all charges against plaintiff were false, improper, not provable, did not have the requisite intent and were without merit.

71. Upon information and belief, all charges in connection with this arrest were dismissed on or about March 7, 2023.

72. Upon information and belief, as a result of the actions of the defendants as more fully set forth herein, the defendants caused the plaintiff to undergo great emotional and mental anguish and emotional and physical harm, and caused the plaintiff to suffer loss of liberty and freedom, and plaintiff was arrested, kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish and loss of enjoyment of life.

73. Upon information and belief, as a result of the actions of the defendants as more fully set forth herein, the defendants caused the plaintiff to undergo great emotional and mental anguish and emotional and physical harm, and caused the plaintiff to suffer loss of liberty and freedom, and plaintiff was arrested, kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish and loss of enjoyment of life for which plaintiff is entitled to damages from the defendants in an amount exceeding the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S
CIVIL RIGHTS PURSUANT TO 42 USC §1983 AGAINST DEFENDANTS NEW
YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW
YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER
WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA
(Shield #25897)

74. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "73", above as if fully set forth hereinafter.

75. Upon information and belief, during all the times herein, the individual defendants, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897), and each of them, separately and in concert, acted under the cover of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of Bronx, City of New York.

76. Upon information and belief, each of the defendants, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897), separately and in concert engaged in illegal conduct herein before and hereinafter mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and

immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States.

77. Upon information and belief, each of the defendants, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897), separately and in concert engaged in illegal conduct herein before and hereinafter mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States in falsely targeting, chasing, stopping, striking with a vehicle, punching, detaining, holding, searching, arresting, threatening and imprisoning the plaintiff, and deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution, to wit: freedom from illegal entry, trespass, burglary, false arrest, false imprisonment, illegal seizure, illegal search, violative search, assault, battery, malicious prosecution, illegal detention, coercion and intimidation, all secured by the Constitution of the United States and 42 United States Code Section 1983. Upon information and belief, the defendants acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

78. Upon information and belief, the actions and conduct described herein by NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897), and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897), constituted a continuing pattern of abuse and misconduct by the New York City Police Department in general and specifically, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897) and said misconduct and official unconstitutional policy caused plaintiff to be subjected to and deprived the plaintiff's constitutional rights.

79. Upon information and belief, at all times herein, the defendant, THE CITY OF NEW YORK, as well as The New York City Police Department condoned the above unconstitutional conduct by its police officers as is demonstrated and documented by the substantial and reoccurring number of 42 USC § 1983 claims filed

against THE CITY OF NEW YORK and this official New York City unconstitutional pattern of behavior has been demonstrated on several occasions by both the New York City Police and other investigations as well as the above actions by the New York City Police Department Police Officers.

80. Upon information and belief, as a direct and proximate result of the conduct of the defendants, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897) aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

81. Upon information and belief, all said actions done by the defendants against the plaintiff herein were done against the plaintiff's will and plaintiff was aware and did not consent to being held, detained, confined, arrested, assaulted, battered or prosecuted, nor did the plaintiff consent to his home being broken into without due or proper cause nor did plaintiff consent to any of the police action as set forth herein.

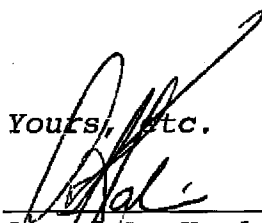
82. Plaintiff hereby demands compensation and punitive damages, together with reasonable attorney's fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

WHEREFORE, plaintiff demands judgment against the defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897), jointly and severally in an amount exceeding the jurisdictional limits of all lower Courts on the **First Cause of Action for FALSE ARREST**, and in amount exceeding the jurisdictional limits of all lower Courts on the **Second Cause of Action for FALSE IMPRISONMENT**, in an amount exceeding the jurisdictional limits of all lower Courts on the **Third Cause of Action for ASSAULT**, in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth Cause of Action for BATTERY**, and in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth Cause of Action for MALICIOUS PROSECUTION**, and in amount exceeding the jurisdictional limits of all lower Courts on the **Sixth Cause of Action for violation of Civil Rights** against defendants, NEW YORK CITY POLICE OFFICER ELIJAH RODRIGO (Shield #11451), NEW YORK CITY POLICE OFFICER SERGIO, NEW YORK CITY POLICE OFFICER WILLIAM MUNOZ, and NEW YORK CITY POLICE OFFICER ANDERSON ROSA (Shield #25897) for CIVIL RIGHTS

VIOLATIONS, plus attorney's fees and punitive damages against all defendants on the Sixth cause of action, together with costs, interest and disbursements of this action, and together with such other and further relief as this Court deems just and proper.

Dated: Bronx, New York
November 14, 2023

Yours, etc.



David A. Karlin, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

VERIFICATION

State of New York)

ss:

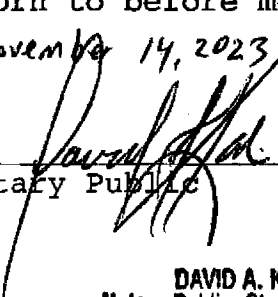
County of Bronx)

Guy Goodman, being duly sworn, deposes and says: That (s)he is the plaintiff in these proceedings; that (s)he has read and knows the contents of the above VERIFIED COMPLAINT and that the same is true to her/his own knowledge except as to the matters therein stated to be alleged upon information and belief, as to those matters, (s)he believes them to be true.


Guy Goodman

Sworn to before me on

November 14, 2023


Notary Public

DAVID A. KARLIN
Notary Public, State of New York
No. 02KA6050239
Qualified in Westchester County
Commission Expires 10/30/2026